



General Terms and Conditions / User Agreement for Lenders

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Accepted checkboxes

- I have read, understood and accept the General Terms and Conditions / User Agreement, including its integral annexes



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GARANTA FINANZGRUPPE AG

General Terms and Conditions / User Agreement for Lenders

including all integral annexes

Version: 0.4 Effective date: 2026-07-01 Company address: Schauplatzgasse 26, CH-3011 Bern, Switzerland VQF member no.: 101211

Document Structure and One-Click Acceptance

This document is designed as one single contractual document to be accepted by a Lender through one click during onboarding. The annexes below form an integral part of this Agreement and are accepted together with the main terms.

Part	Content / Purpose
Main Agreement	General platform terms, account opening, electronic acceptance, claim purchase mechanics, assignment, servicing, secondary market, liability, closure and governing law.
Annex 1	Fee Schedule.
Annex 2	Risk Disclosure Statement.
Annex 3	Payment & Settlement Terms.
Annex 4	FX Terms.
Annex 5	Privacy / Data Protection Notice.
Annex 6	KYC/AML Declaration.
Annex 7	Tax Information Disclaimer.

Main Agreement

1. Parties and Scope

These General Terms and Conditions / User Agreement for Lenders, including all annexes (the "Agreement"), govern the relationship between Garanta Finanzgruppe AG, Schauplatzgasse 26, CH-3011 Bern, Switzerland ("Garanta", "we", "us" or the "Platform Operator") and any person or legal entity that opens and uses a lender account on the Garanta platform (the "Lender" or "User").

By opening an account and accepting this Agreement through the platform, the Lender confirms that it has read, understood and accepted this Agreement, including all integral annexes, as amended from time to time in accordance with this Agreement.

This Agreement applies to the opening and use of a lender account, access to loan opportunities, funding commitments, claim purchase and assignment transactions, secondary market transfers, payment and settlement operations, FX conversions, reporting and all related platform services.

2. Status and Role of Garanta

Garanta operates a Swiss loan-based crowdlending platform. The platform facilitates the financing of selected loan opportunities by matching registered Lenders with specific corporate Borrowers.

Depending on the structure of a Project, Garanta may act as platform operator, finance arranger, original lender or lender of record, servicing agent, collection agent and/or collateral agent. The specific role of Garanta for each Project will be set out in the relevant Project documents and Transaction Documents.

Garanta does not operate a bank, does not accept deposits, does not issue electronic money, does not operate a general-purpose payment account, does not provide investment advice or portfolio management and does not operate a collective investment scheme.

Internal platform balances are used only for settlement purposes within the platform and for withdrawals to verified bank accounts. Unless expressly stated in Project documents, Garanta does not guarantee repayment of principal, interest, default interest, fees or any other amount due by a Borrower.

3. Definitions

The following terms apply throughout this Agreement unless the context requires otherwise.

Term	Definition
Account	The user account opened by a Lender on the Garanta platform.
Agreement	This General Terms and Conditions / User Agreement for Lenders, including all integral annexes and any later accepted version.
Assignee	A Lender or User that purchases or receives a Claim or Holding by assignment or transfer.
Assignor	A person or entity that sells, assigns or transfers a Claim or Holding, including Garanta, an original creditor, a lender of record or another Lender, depending on the Project structure. Where a Borrower assigns or pledges its own receivables as Collateral, such assignment or pledge is governed by the relevant Collateral documents.
Assignment Agreement	A project-specific or transaction-specific agreement under which a Claim, Holding or participation is assigned, transferred or reassigned to a Lender or another User.
Available Balance	The internal balance recorded for a Lender on the platform and available for funding commitments, permitted FX conversions, payment of platform fees or withdrawal to a verified bank account. It is a settlement record only and not a bank deposit or e-money balance.
Borrower	A legal entity or other approved borrower seeking financing through a Project on the platform. A Borrower may include a company that uses the financing received through the platform for its own commercial, lending, leasing, factoring or receivables-financing activities.
Borrower Payments	Payments made or due by a Borrower in relation to a Project, including principal, contractual interest, default or penalty interest, recoveries, fees, costs or other amounts.
Business Day	A day on which banks in Switzerland are generally open for business, excluding Saturdays, Sundays and public holidays in the Canton of Bern.
Claim	A loan claim, receivable, participation right or other economic claim arising from or linked to a financed Project, to the extent described in the relevant Transaction Documents.
Claim Amount	The principal amount or economic amount of a Claim or part of a Claim assigned or transferred to a Lender.
Claim Price	The price paid by a Lender for a Claim or Holding, including any discount or premium where applicable.
Collateral	Any security, pledge, assignment, guarantee, mortgage, receivables pledge, collection account arrangement or other support expressly described in the Project documents. Collateral may be absent, limited, unenforceable or insufficient.
Creditor	The person or entity that owns a Claim or acts as creditor of record, depending on the Project structure.
Current Principal Balance	The outstanding principal balance of a Holding or Claim at the relevant time, excluding accrued interest, default interest, fees, premiums or discounts.
Funding Commitment	A binding or conditional commitment made by a Lender through the platform to fund a Project or purchase a Claim/Holding.
Holding	A separate lender participation created from one allocation or funding transaction into a specific Project. Multiple allocations by the same Lender into the same Project create separate Holdings.
Loan Agreement	The loan, credit, facility, receivables financing or similar agreement entered into with the Borrower and forming the basis for a Project.
Platform Ledger	The internal transaction-level ledger maintained by Garanta for operational, reconciliation, accounting, audit, tax and reporting purposes.
Project	A specific loan opportunity or financing opportunity published on the platform.
Project Summary	The summary shown to a Lender before confirmation of a funding commitment or purchase, including key economic and risk information available on the platform.
Transaction Documents	Project-specific or transaction-specific documents, including investment confirmations, assignment agreements, secondary market reassignment agreements, loan agreements, security documents, collateral agent terms and related notices.



Term	Definition
Verified Bank Account	A bank, PSP or EMI account in the name of the approved Lender and verified by Garanta.

Clarification regarding Borrower financing activities. Where a Borrower uses the financing received through the platform for its own commercial, lending, leasing, factoring or receivables-financing activities, the Borrower remains the debtor under the relevant Loan Agreement. Lenders do not acquire direct claims against the Borrower's own underlying customers or debtors unless expressly provided otherwise in the relevant Transaction Documents or Collateral documents.

4. Eligibility and Account Opening

A person may use the platform as a Lender only after registration, identification, verification and approval by Garanta in accordance with the applicable KYC/AML requirements.

Garanta may accept natural persons and legal entities as Lenders, subject to jurisdictional restrictions, risk assessment, sanctions screening, PEP screening, source-of-funds checks and any additional compliance measures deemed necessary by Garanta.

Legal entity Lenders must be onboarded and approved through a KYB process. Garanta may require corporate documents, register extracts, UBO declarations, board or management approvals, authorised representative documentation and bank account ownership evidence.

Garanta may refuse, suspend or terminate an account at its discretion if the Lender does not satisfy onboarding requirements, is located in a prohibited jurisdiction, fails to provide requested information, triggers sanctions or AML concerns, breaches this Agreement or presents unacceptable legal, regulatory, operational or reputational risk.

5. KYC/AML and Compliance Obligations

The Lender must provide complete, accurate and up-to-date information requested by Garanta or its external verification providers. Garanta may use external providers such as Sumsub, Didit.me, Veriff or similar providers to perform KYC/KYB/AML checks.

The Lender must promptly notify Garanta of any change to identity, address, tax residence, bank account, beneficial ownership, control structure, authorised representatives, PEP status, sanctions exposure or any other relevant information.

Garanta may perform ongoing monitoring, periodic re-verification, transaction monitoring, sanctions screening, PEP screening and adverse media checks. Garanta may request additional information on source of funds, source of wealth, purpose of transactions or economic background of platform activity.

No Lender may fund an account or withdraw funds using a third-party bank account. All incoming and outgoing transfers must be made from or to Verified Bank Accounts held in the name of the approved Lender.

6. Lender Representations and Declarations

By accepting this Agreement, the Lender represents and warrants that it has full legal capacity and authority to enter into this Agreement and use the platform; all information provided to Garanta is true, complete and not misleading; it acts on its own behalf and not on behalf of any undisclosed third party; it uses funds from lawful sources; it has sufficient knowledge and experience to make its own lending decisions; it understands that lending through the platform involves risk, including the risk of losing all or part of the funded amount; it has read and understood the Risk Disclosure Statement; it is responsible for its own lending decisions and does not rely on Garanta as an investment, tax, legal or financial advisor; and it will comply with all applicable laws, tax obligations and reporting duties in its jurisdiction.

The Lender acknowledges that Garanta may reject, suspend or reverse a transaction where required by law, compliance controls, operational controls, Project conditions or this Agreement.

7. Platform Access, Security and Electronic Acceptance

The Lender accesses the platform through credentials and any additional authentication methods required by Garanta. The Lender must keep login credentials, devices and authentication factors secure and confidential.

All actions performed through the Lender's authenticated Account, including instructions, confirmations, funding commitments, purchase orders, withdrawals, FX conversions, secondary market listings, secondary market purchases and acceptance of documents, are deemed to have been performed by the Lender unless the Lender proves fraud or unauthorised access without fault or negligence.



The Lender agrees that this Agreement and all Transaction Documents may be accepted electronically, including by clickwrap acceptance, electronic confirmation, checkbox, platform action or other electronic means. Platform acceptance, instruction or confirmation has binding legal effect between the parties to the extent permitted by applicable law.

Garanta will keep technical evidence of the acceptance and transaction confirmations, including user ID, timestamp, IP address, document version, document hash, language, acceptance text and relevant event record.

8. Blocking, Refusal and Correction of Transactions

Garanta may refuse to approve or execute an instruction or transaction if the Lender fails to comply with this Agreement, the instruction is unclear, the Account is restricted, the Available Balance is insufficient, the Project conditions are not met, Garanta has compliance or fraud concerns, Garanta cannot verify the Lender's identity or authority, or there is a technical, operational, legal or regulatory reason to do so.

Garanta may block Account access where it suspects unauthorised access, compromised credentials, fraud, money laundering, sanctions issues, illegal transactions, security risk, operational risk or breach of this Agreement.

If the Platform Ledger is mistakenly credited or debited due to system error, manual error, payment reversal, chargeback, reconciliation error or other operational issue, Garanta may correct the ledger by reversal or adjustment entries. Historical records should not be deleted; corrections should remain visible in the audit trail.

9. Funding an Account and Payment References

The Lender may fund its platform account only by bank transfer or other payment method approved by Garanta. Each Lender may receive a unique payment reference or identification code that must be included in the payment reference field.

Garanta will credit an internal Available Balance only after the payment has been received, matched and reconciled against the Lender's Verified Bank Account and payment reference. If a payment cannot be matched or raises compliance concerns, it may be held as pending, returned or subject to further review.

If the Lender sends funds without the required payment reference, from an unverified bank account, in the wrong currency, with an inconsistent sender name, with an unexpected amount or with any other mismatch, Garanta may treat the payment as unmatched until properly identified and reviewed.

Funds are held only for settlement purposes in segregated, non-interest-bearing accounts or with approved banking, PSP or EMI partners, for a maximum period of 60 days, consistent with the applicable Swiss settlement framework. The Lender has no right to interest on funds held for settlement. If a Funding Commitment is not executed within this period, the funds will be returned to the Lender's Verified Bank Account.

10. Primary Market Lending Process

Garanta may publish Projects on the platform. Each Project may include selected information on the Borrower, loan amount, term, interest, repayment schedule, Collateral or security if any, risk information, fees, jurisdiction and Project-specific conditions.

A Lender may make a Funding Commitment or purchase instruction for a Project through the platform. Before confirmation, the platform should display a Project Summary or transaction summary showing the key parameters of the proposed transaction.

The Lender must review the Project Summary, Project documents and any available Transaction Documents before confirming. If the Lender confirms the transaction, the confirmation becomes binding, subject to Project conditions, platform rules and this Agreement.

All Funding Commitments and purchase instructions are registered in the Platform Ledger. Where sequencing matters, the platform system time is decisive. Garanta may define the order and execution logic of commitments, allocations and oversubscription handling.

11. Confirmation, Debit of Balance and Creation of Holding

Upon the Lender's electronic confirmation of a Funding Commitment or purchase, Garanta may reserve, block or debit the relevant amount from the Lender's Available Balance. The relevant Claim or Holding is created, assigned or recorded when the conditions stated in the Project documents and the Transaction Documents are satisfied.

The Lender authorises Garanta to apply the Lender's Available Balance to the relevant Project, to transfer settlement amounts to the Borrower, seller, escrow, collection account or other relevant account in accordance with the Transaction Documents, and to record the resulting Holding in the Platform Ledger.



If a Project is not successfully funded, cancelled, expired or rejected, reserved funds will be released back to the Lender's Available Balance, unless otherwise stated in the Project terms or required for fees, costs or legal reasons.

12. Claim Assignment, Holdings and Legal Relationship

The legal mechanism by which a Lender obtains rights in relation to a Project may include purchase and assignment of loan claims, participation in loan claims, reassignment or another mechanism described in the relevant Transaction Documents.

Each allocation or funding transaction into a Project creates a separate Holding. If the same Lender allocates funds more than once to the same Project, each allocation creates a separate Holding, with its own audit trail, transaction evidence and reporting.

The Lender acknowledges that it may acquire only a partial Claim or economic participation, not the entire claim against the Borrower. The Lender may not become the sole creditor of the Borrower and may hold rights together with other Lenders participating in the same Project.

Unless expressly provided in the Transaction Documents, the underlying Loan Agreement and related Borrower documents may remain with Garanta, the original creditor, the collateral agent or another designated party. The Lender receives the rights described in the Transaction Documents and the platform records, not unrestricted access to all Borrower files.

To the extent legally permitted and as further set out in the Transaction Documents, Garanta may administer, service, collect, enforce, restructure, recover and manage Claims and Collateral in its own name or in the name of a designated creditor or agent, but for the economic benefit of the relevant Lenders.

13. Borrower Information and Confidentiality

The Lender acknowledges that Borrower, guarantor, pledgor and Collateral information may be confidential, commercially sensitive, protected by data protection law or subject to contractual restrictions. Garanta may disclose only limited information on the platform and in Project documents.

Garanta does not guarantee that Borrower information, financial information, Collateral information, scoring, Project descriptions or third-party reports are complete, accurate, current or free from error. The Lender must make its own assessment and bears the risk of relying on such information.

Garanta may update Project information where new information becomes available, but has no obligation to continuously update every data point unless required by law, Project documents or internal policy.

14. No Direct Contact, Collection or Enforcement by Lender

The Lender must not contact the Borrower, guarantor, pledgor or collateral provider directly in relation to a Project, unless Garanta expressly permits it in writing.

The Lender must not request payments directly from the Borrower, initiate unilateral recovery actions, enforce Collateral, contact debtors of pledged receivables, commence individual legal proceedings, visit the Borrower's premises or otherwise interfere with servicing, collection, restructuring or recovery actions.

All servicing, collection, recovery, Collateral enforcement, restructuring, waiver, standstill or legal action is coordinated by Garanta or by a designated servicing, collection or collateral agent in accordance with the Transaction Documents and applicable law.

15. No Investment Advice and No Portfolio Management

Garanta does not provide investment advice, portfolio management, personal recommendations or tax advice. Information displayed on the platform is provided for decision-support and transparency purposes only.

The Lender is solely responsible for evaluating each Project, the Borrower, risk information, Collateral, maturity, currency, interest rate, jurisdiction, documentation and any other relevant factor before making a funding decision.

Garanta may apply internal due diligence, underwriting, scoring or risk classification processes, but these do not constitute a guarantee, recommendation or representation that a Project is suitable for any specific Lender.

16. Repayments, Allocation and Servicing

Borrower Payments may include principal, contractual interest, default or penalty interest, recoveries, costs or other amounts. Garanta will allocate and distribute payments to Lenders according to the relevant Project terms, Transaction Documents and Platform Ledger.



Principal payments received in relation to a Project are allocated proportionally to the relevant Lenders based on their Current Principal Balance or other allocation rule stated in the Project documents. Contractual interest is allocated to the Lenders entitled to such interest for the relevant accrual period.

If a Holding is transferred on the secondary market during an interest period, accrued interest up to the settlement date belongs to the seller and future interest after settlement belongs to the buyer, unless the relevant Transaction Documents state otherwise.

Garanta is not required to pay a Lender any amount in respect of a Claim or Holding before Garanta or the relevant collection account has received the corresponding amount from the Borrower, seller, buyer, recovery agent, collateral enforcement or other paying party.

17. Default, Recovery and Restructuring

If a Project enters default or recovery, normal contractual interest will stop accruing on the official default declaration date unless the relevant Project documents provide otherwise. From that date, default or penalty interest may accrue if provided in the relevant loan or project agreement. Contractual interest and default or penalty interest will be calculated and reported separately.

Recovery proceeds, after deduction of externally withheld legal or recovery costs and any costs permitted under the Project documents, will be allocated to the relevant Lenders according to the applicable recovery waterfall and their Holdings.

Garanta or the designated agent may decide on recovery strategy, restructuring, enforcement, settlements, standstills, waivers or write-offs where permitted by the Transaction Documents, provided that decisions are made in accordance with the documented servicing and recovery framework.

Recovery may be delayed, partial or unsuccessful. Garanta does not guarantee recovery success or recovery timing.

18. Secondary Market

Garanta may provide a secondary market functionality as a bulletin-board style mechanism for the transfer of Holdings between registered users. The secondary market is not a regulated trading venue, exchange, multilateral trading facility or liquidity guarantee.

A seller may list only an entire Holding, not a fraction of a Holding. Splitting, partial sales or partial transfers of a single Holding are not allowed. If a Lender holds multiple separate Holdings in the same Project, each Holding may be listed separately.

A Holding may be listed immediately after purchase or assignment, with no minimum holding period, provided that the related Project is current/performing. The seller may set a sale price at a discount or premium to the Current Principal Balance of the Holding.

The secondary market sale price consists of the Current Principal Balance being sold plus or minus any seller-selected premium or discount, excluding accrued interest unless otherwise stated. Platform fees are charged separately according to the Fee Schedule.

A seller listing becomes a binding offer when confirmed on the platform and remains available until cancelled by the seller, expired, removed by Garanta or accepted by a buyer. Upon buyer acceptance and settlement, a reassignment or transfer is recorded and the buyer becomes the holder of the transferred Holding.

If a Project is late, overdue, restructured, under observation, in default, in recovery, under legal enforcement, subject to a payment incident or otherwise non-standard, listing may require explicit approval by Garanta and the buyer may be required to accept an additional risk acknowledgement.

19. Fees and Costs

The Lender agrees to pay the fees and costs set out in the Fee Schedule, as amended from time to time. Fees may include platform fees, secondary market fees, FX spread or service margin, withdrawal handling fees, penalty or administrative fees and other disclosed costs.

Fees may be deducted from the Lender's Available Balance, from transaction proceeds or from amounts payable to the Lender, where permitted by this Agreement and applicable law. Bank, PSP, EMI, intermediary bank or correspondent bank charges may be borne by the Lender where applicable.

Borrower fees and other Project fees may also be charged separately in accordance with the relevant Borrower documentation and Project documents.

20. FX Conversions



The platform may support currency conversions for settlement purposes, initially CHF/EUR and EUR/CHF. FX is an auxiliary settlement function and not a trading or speculative service.

FX rates may be entered by Garanta at the beginning of each business day and updated when significant market movements occur. Rates, spreads, rounding rules and maximum conversion limits are described in the FX Terms.

The Lender remains exposed to currency risk where a Project, cash balance, repayment or withdrawal is denominated in a currency different from the Lender's reference currency.

21. Statements, Reports and Documents

The Lender may access platform statements, transaction confirmations, Project documents, Assignment Agreements, secondary market confirmations, repayment records, fee records and annual information summaries through the platform, subject to system availability and document retention rules.

Garanta may provide monthly or annual statements for information purposes. Annual reports may include interest received or credited, fees, FX costs, secondary market results, losses, recoveries and informational principal movements.

Documents generated or accepted through the platform may be stored in electronic format. The Lender agrees that electronic copies, audit logs and platform records may be used as evidence of transactions, acceptances and communications.

22. Liability Limitations

The Lender uses the platform and funds Projects at its own risk. Garanta is not liable for Borrower default, Collateral insufficiency, recovery delays, FX losses, market illiquidity, tax consequences, regulatory changes or losses arising from the Lender's own decisions.

Garanta is not responsible for the accuracy, completeness or continued validity of information provided by Borrowers, guarantors, third-party data providers, public registers, external advisors or other third parties, except in cases of fraud, wilful misconduct or gross negligence by Garanta where mandatory law does not permit exclusion.

Garanta's liability for direct losses caused by its own proven breach may be limited to the amount of direct, foreseeable loss suffered by the Lender in connection with the specific transaction, to the extent permitted by applicable law. Garanta is not liable for indirect, consequential, punitive, reputational, opportunity, lost profit or tax losses.

Nothing in this Agreement excludes liability where exclusion is not permitted by mandatory applicable law.

23. Account Suspension, Restriction and Closure

Garanta may suspend, restrict or close an account if required for compliance, legal, regulatory, risk, operational or security reasons.

The Lender may request closure of the Account if there are no active Holdings, pending transactions, open balances, recovery cases, disputes, legal obligations or outstanding fees. If the Lender has open positions, the Account may be restricted for new activity while existing Holdings continue to be administered until repayment, transfer, write-off or other resolution.

Account closure does not mean immediate deletion of data. Garanta must retain financial, contractual, KYC/KYB/AML, tax, audit, payment, ledger, transaction, document, communication and regulatory records for the legally required retention period, minimum 10 years or longer if required.

24. Business Continuity and Platform Insolvency Contingency

If Garanta becomes subject to insolvency proceedings, severe operational disruption or another event preventing normal platform operations, Garanta should suspend new Project funding and secondary market transactions as soon as reasonably practicable, subject to applicable law and instructions from competent authorities.

Garanta should maintain records enabling identification of Lenders, Holdings, Claims, Available Balances, Transaction Documents, Borrower payment records and outstanding Project obligations. Garanta may arrange for a third-party administrator, servicer, collection agent, law firm, trustee or other suitable party to take over administration, servicing, collection or data access where legally and operationally possible.

Insolvency or operational disruption of Garanta should not, by itself, extinguish the underlying legal relations between Lenders, Borrowers, guarantors, collateral providers and other relevant parties, subject to applicable law and the Transaction Documents.

25. Data Protection and Confidentiality



Garanta processes personal data in accordance with its Privacy / Data Protection Notice and applicable data protection laws. Data may be processed on Garanta-controlled infrastructure located in Switzerland and by approved external providers, including KYC/AML providers, banks, PSPs, EMI partners, auditors, legal advisors, compliance providers, debt collection providers and regulators where required.

The Lender acknowledges that certain data must be retained and cannot be deleted immediately upon request where retention is required for AML, regulatory, tax, audit, legal, contractual or operational purposes.

The Lender must keep confidential any non-public Borrower, Project, platform, pricing, risk, recovery or transaction information obtained through the platform, unless disclosure is required by law or expressly permitted by Garanta.

26. Tax

Garanta may provide annual account statements or tax information summaries for platform participants. Such information is provided for convenience and information purposes only and does not constitute tax advice.

The Lender is solely responsible for determining, reporting and paying all taxes arising from platform activity in all relevant jurisdictions, including income tax, wealth tax, capital gains tax, withholding tax, FX reporting or any other tax obligation.

Garanta does not withhold tax unless required by applicable law or the relevant Project documentation. If tax is withheld by a Borrower or other party, Garanta may report the information available to it but does not guarantee recoverability, refundability or tax credit treatment.

27. Communications and Notices

Garanta may communicate with the Lender through the platform, by email, by secure download, by notification or by other contact details provided by the Lender. The Lender must keep contact details up to date.

Notices sent by email or through the platform may be deemed received when sent or made available, unless mandatory law requires another rule. The platform records may be used as evidence of sending, delivery or availability.

28. Amendments

Garanta may amend this Agreement, the Fee Schedule, platform rules or operational policies from time to time to reflect legal, regulatory, operational, technical, product, risk or market changes.

Garanta will notify the Lender of material amendments through the platform or by email. Amendments may take effect after a notice period stated by Garanta, upon the Lender's acceptance, or immediately where required by law, security, compliance, operational necessity or where the amendment is favourable or administrative.

Garanta may require the Lender to accept the updated version before continuing to use the platform, funding new Projects, using the secondary market or withdrawing funds.

29. Governing Law and Jurisdiction

This Agreement is governed by Swiss law, subject to mandatory conflict-of-law rules and mandatory consumer or investor protection rules that may apply in a relevant jurisdiction.

Subject to mandatory law, the courts at the registered seat of Garanta Finanzgruppe AG shall have jurisdiction. Garanta may also bring proceedings against the Lender in the Lender's domicile, place of incorporation or any other competent jurisdiction where necessary for debt recovery, enforcement, injunctive relief or protection of rights.

30. Language and Version Control

This Agreement may be made available in more than one language. Unless Garanta states otherwise, the English version prevails in case of discrepancy between versions.

The platform should retain the version number, effective date and document hash of each version accepted by a Lender. Prior versions should remain accessible in the platform records or upon request where legally required.

Annex 1 - Fee Schedule

This Fee Schedule forms an integral part of the Agreement. Amounts, percentages and thresholds must be completed before production launch.



Fee / Cost	Who pays	Basis	Amount / Formula	Timing
Primary market platform fee	Lender / Borrower / both [to confirm]	Project-specific	[to complete]	At funding / repayment / other
Secondary market seller fee	Seller	Transfer price excluding accrued interest	[to complete]	At completed transfer
Secondary market buyer fee	Buyer	Transfer price excluding accrued interest	[to complete]	At completed transfer
FX spread / service margin	User converting currency	Converted amount	[to complete]	At conversion
Withdrawal handling fee	Withdrawing user	Per withdrawal or pass-through cost	[to complete]	At withdrawal
Bank / PSP / EMI costs	Relevant user	Pass-through or fixed	[to complete]	When incurred
Recovery / legal costs	Relevant Project participants	Project waterfall / pass-through	[to complete]	Before distribution or as incurred
Inactive balance handling fee	Lender [if applicable]	Idle Available Balance	[to complete]	After notice / per policy

Fee amendments

Garanta may amend this Fee Schedule in accordance with the amendment provisions of the Agreement. The platform should retain historical fee schedules applicable to completed transactions.

Annex 2 - Risk Disclosure Statement

The Lender must read this Risk Disclosure Statement carefully before funding any Project. By accepting the Agreement, the Lender confirms that it understands the risks below.

Risk of loss: Lending through the platform involves risk. The Lender may lose all or part of the funded amount.

No deposit protection: Funds and Holdings are not bank deposits and are not protected by a deposit insurance scheme.

No e-money: The internal balance is only a settlement record and not electronic money or a general-purpose payment account.

No Garanta guarantee: Garanta does not guarantee Borrower repayment, recovery success or secondary market liquidity.

Borrower risk: The Borrower may default, become insolvent, dispute the debt, delay repayment or breach Project documents.

Partial claim risk: The Lender may own only a partial Claim or economic participation and may not control enforcement or restructuring decisions.

Information risk: Borrower or third-party information may be incomplete, inaccurate, outdated or misleading.

Collateral risk: Collateral may be absent, insufficient, difficult to enforce, illiquid, contested, subordinated or subject to priority claims.

Recovery risk: Recovery actions may take time and may result in partial or no recovery after costs.

Liquidity risk: A Holding may not be sellable on the secondary market or may sell only at a discount.

Secondary market risk: A buyer may accept a Holding in a Project with late, overdue, restructured, defaulted or recovery status and may suffer loss.

FX risk: A Lender may incur losses from exchange rate movements, conversion spreads and rounding differences.

Operational risk: Technical, banking, PSP, cyber, reconciliation, data or administrative issues may delay processing.

Platform risk: Insolvency or operational failure of Garanta may disrupt servicing, reporting and access to records.

Regulatory and tax risk: Applicable laws, tax treatment or regulatory requirements may change or may differ by jurisdiction.

Independent decision



The Lender confirms that it makes each funding decision independently and at its own risk, without relying on Garanta as advisor or guarantor.

Annex 3 - Payment & Settlement Terms

1. Purpose of Internal Balance

The internal platform balance is a settlement record used exclusively for platform-related purposes: funding commitments, receipt of Borrower Payments, payment of fees, permitted FX conversions and withdrawals to Verified Bank Accounts. It is not a bank account, payment account, e-money account or general-purpose wallet.

The balance does not bear interest. The Lender has no right to use the balance for payments to third parties or for activities outside the platform.

2. Incoming Payments

Incoming payments must come from a Verified Bank Account held in the name of the approved Lender. The Lender must use the unique payment reference provided by Garanta where required.

Third-party payments are not allowed and may be rejected, returned or held pending compliance review. Garanta may request evidence of bank account ownership and source of funds.

3. Unmatched or Suspicious Payments

If any key element does not match, including payer name, IBAN, currency, amount, unique reference, expected counterparty or transaction purpose, the payment may remain unmatched and may not be credited, allocated, refunded or otherwise processed until resolved.

Suspicious or prohibited payments may be reported, frozen, returned, rejected or otherwise handled in accordance with applicable law and Garanta's AML procedures.

4. Withdrawals

Withdrawals may be made only to a Verified Bank Account held in the name of the approved Lender. Garanta may require additional verification before processing withdrawals.

Withdrawals may be delayed or refused where AML, sanctions, fraud, operational, legal, regulatory, account restriction, open position, recovery or dispute concerns exist.

5. Settlement Timeframes

Funds are held only for settlement purposes for a maximum period of 60 days, consistent with the applicable Swiss settlement framework. Garanta may require Available Balances to be allocated, withdrawn or returned within legally and operationally permitted settlement periods. Garanta may return idle balances to a Verified Bank Account where required by internal policy, law or regulatory expectations.

6. Reconciliation and Evidence

Garanta may credit internal balances only after receipt and reconciliation of external bank/PSP/EMI movements. Each payment event should store amount, currency, booking date, value date, payer/payee name, account identifier, bank/PSP reference, payment description, linked user, linked Project or loan event, reconciliation status, admin reviewer and supporting evidence reference.

Annex 4 - FX Terms

1. FX Function

FX in Garanta is an auxiliary settlement function, not a trading or speculative function. Initially, the platform may support CHF/EUR and EUR/CHF, with other currency pairs added later if approved.

2. Rates and Limits

FX rates used in the platform may be entered by Admin at the beginning of each business day and updated whenever significant currency fluctuations occur. No minimum exchange amount applies. A maximum conversion limit applies, initially CHF 100,000 or equivalent, unless changed by Garanta.



3. Precision and Rounding

FX rates must be stored internally with at least 6 decimal places and may be displayed with 4 decimal places. Internal calculations must use the stored rate, not the displayed rounded rate. Final amounts debited and credited are rounded to 2 decimal places using standard half-up rounding. Rounding differences are recorded separately in the ledger.

4. Internal Matching and External Settlement

Where possible, opposite currency flows may be matched internally for settlement purposes. Garanta may close net FX positions with banks, PSPs, EMIs or other financial partners. Internal matching is an operational netting mechanism and must not be presented as an exchange marketplace between users.

5. FX Risk

The Lender bears FX risk where balances, Projects, repayments or withdrawals involve different currencies. Displayed equivalents are informational and may differ from final settlement amounts.

Annex 5 - Privacy / Data Protection Notice

1. Data Controller

Garanta Finanzgruppe AG is responsible for processing personal data in connection with the platform, subject to applicable Swiss data protection law and, where applicable, GDPR.

2. Data Categories

Garanta may process identity data, contact data, KYC/KYB data, UBO data, bank account data, transaction data, tax data, communications, platform usage data, device/security data and documents uploaded or generated through the platform.

3. Purposes

Data is processed for onboarding, KYC/KYB/AML, sanctions and PEP screening, operation of the platform, settlement, accounting, tax reporting, audit, fraud prevention, legal compliance, dispute handling, recovery, communication and security.

4. External Providers and Recipients

Garanta may share data with KYC/AML providers, banks, PSPs, EMIs, IT providers, auditors, legal and compliance advisors, debt collectors, recovery agents, regulators, authorities and other recipients where necessary and permitted.

5. Storage and Retention

Relevant data and documents may be stored on Garanta-controlled infrastructure located in Switzerland. Financial, contractual, KYC/KYB/AML, tax, audit, payment, ledger, transaction, document, communication and regulatory records must be retained for the legally required period, minimum 10 years or longer where required.

6. Closure and Anonymization

Account closure does not mean immediate deletion of data. Data required for legal, tax, audit, AML, regulatory, contractual or operational purposes remains identifiable during the retention period. Non-essential data may be anonymized earlier where legally permitted.

7. Data Subject Rights

The Lender may have rights of access, rectification, deletion, restriction, objection and portability, subject to legal limitations and retention obligations. Requests may be refused or limited where Garanta must retain data for legal, AML, tax, audit, regulatory, contractual, dispute, recovery or security reasons.

Annex 6 - KYC/AML Declaration

1. Lender Declarations

The Lender declares that it acts on its own behalf, uses lawful funds, provides accurate information and will not use the platform for money laundering, terrorist financing, fraud, sanctions evasion, tax evasion or any unlawful purpose.

2. Source of Funds and Bank Accounts



The Lender must provide information on source of funds or source of wealth upon request. Incoming and outgoing payments must be made only through Verified Bank Accounts held in the Lender's own name.

3. PEP, Sanctions and High-Risk Status

The Lender must disclose PEP status, sanctions exposure, adverse regulatory history or other high-risk circumstances. Garanta may reject, suspend or restrict access based on compliance review.

4. Ongoing Duty to Update

The Lender must notify Garanta without delay of any change in identity, address, tax residence, bank account, beneficial ownership, control, authorised representative, PEP status, sanctions exposure or any other relevant compliance information.

5. Consent to Verification

The Lender consents to identity verification, document verification, database checks, sanctions screening, PEP screening, adverse media checks, transaction monitoring and periodic re-verification by Garanta and its approved providers.

Annex 7 - Tax Information Disclaimer

1. No Tax Advice

Garanta does not provide tax advice. Any tax information, annual statement or transaction report provided by Garanta is for information purposes only.

2. Lender Responsibility

The Lender is responsible for determining and complying with tax obligations in all relevant jurisdictions, including income tax, wealth tax, capital gains tax, withholding tax, FX reporting and any other reporting obligation.

3. Annual Statements

Garanta may provide annual account statements and tax information summaries for platform participants. For Lenders, such reports may include interest received or credited, fees paid, FX costs, potential losses, recoveries, secondary market results and informational principal movements. Principal funded and principal repaid are shown separately and are not treated by Garanta as income.

4. Withholding

Garanta does not withhold tax unless required by applicable law or the relevant Project documentation. If tax is withheld by a Borrower or other party, Garanta may report the information available to it, but does not guarantee recoverability or tax credit treatment.

Acceptance and Version Control

This Agreement is accepted electronically through the platform. The platform should retain the following acceptance evidence:

User ID and user type

Document version and effective date

Document hash

Acceptance timestamp

IP address and device/session data where available

Exact checkbox text

Language of accepted document

Snapshot/PDF of accepted document

Audit trail of subsequent amendments and re-acceptances

End of document.



Acceptance evidence

Field	Value
Platform	BANXUM
Operator	Garanta Finanzgruppe AG
Acceptance ID	7a933d0b-7cf4-4976-923f-670408e6a2b2
User ID	d8edc857-10b1-4c5f-8d82-d0c55280760b
Context	registration:d8edc857-10b1-4c5f-8d82-d0c55280760b
Accepted at	2026-06-23T11:06:50.216395+00:00
Template version ID	bdc b4986-9f8a-4531-9829-aae01e568e81
Template hash	0c417ea7eb481ce7868017987d835957bd7ed59f5596b5857595297a2f5684c0
Renderer	document-artifact-renderer-v2